JanGyan — Learn Without Limits

Category 2: Government Services & Citizen Rights

Module 4 - Citizen Rights & Responsibilities

Module Overview

This handbook is your complete, beginner-to-advanced guide to **Citizen Rights & Responsibilities** — covering Fundamental Rights, Fundamental Duties, the Directive Principles of State Policy, the Right to Information, Consumer Rights, Human Rights basics, Women & Child Rights, Senior Citizen Rights, and your responsibilities as a citizen. This is one of the most practically empowering modules in this category — it tells you exactly what you are entitled to, and what is expected of you in return.

By the end of this module, you will not need to search anywhere else to understand your core rights and responsibilities as an Indian citizen.

Learning Objectives

After completing this module, you will be able to:

- List and explain India's Fundamental Rights and Fundamental Duties
- Understand the role of the Directive Principles of State Policy
- File a Right to Information (RTI) application confidently
- Exercise your consumer rights and file a consumer complaint
- Understand the basics of human rights protection in India
- Identify key protections for women, children, and senior citizens
- Recognise your responsibilities as a citizen alongside your rights

---

Why This Topic Matters

Since 2005, over **2.5 crore RTI applications** have been filed by Indian citizens seeking government information. The National Consumer Helpline's average monthly complaint volume has grown nearly **fourfold**, from 37,062 in 2017 to over 1,47,000 in 2025, as awareness of consumer rights has spread.

> *Reality Check: Many citizens don't exercise rights they already have — from filing an RTI application to lodging a consumer complaint — simply because they were never taught these rights exist or how simple they often are to use.*

Rights that aren't understood are rights that go unused. This module is designed to close that gap.

Introduction

The Indian Constitution organises the relationship between citizens and the State across three connected parts:

- **Fundamental Rights (Part III):** Enforceable legal guarantees protecting individual freedom and dignity

- **Directive Principles of State Policy (Part IV):** Guidelines for the State to work toward, not individually enforceable in court but fundamental to governance
- **Fundamental Duties (Part IVA):** Moral and civic obligations expected of every citizen

Alongside these constitutional foundations, specific laws protect citizens in particular roles — as information-seekers (RTI), as consumers (Consumer Protection Act), and as members of groups needing special protection (women, children, senior citizens).

Fundamental Concepts

Rights, Directive Principles, and Duties Compared

Part of Constitution	Nature	Enforceable in Court?
Fundamental Rights (Part III)	Individual legal guarantees	Yes — directly enforceable
Directive Principles (Part IV)	Guidance for government policy	No — but fundamental to governance
Fundamental Duties (Part IVA)	Civic obligations of citizens	Not directly enforceable, but morally and civically binding

The Six Categories of Fundamental Rights

Right	Covers
Right to Equality	Equality before law, no discrimination, equal opportunity
Right to Freedom	Speech, assembly, movement, profession, and personal liberty
Right Against Exploitation	Prohibits human trafficking, forced labour, and child labour in hazardous work
Right to Freedom of Religion	Freedom to practise, profess, and propagate religion
Cultural and Educational Rights	Protects the right of minorities to preserve their culture and establish institutions
Right to Constitutional Remedies	The right to approach courts directly if any Fundamental Right is violated

---

Complete Detailed Explanation

Part A — Fundamental Rights (Part III, Articles 12–35)

Fundamental Rights are the Constitution's strongest protections — enforceable directly in the Supreme Court or High Courts if violated. Dr. B.R. Ambedkar called the Right to Constitutional Remedies (Article 32) the **"heart and soul"** of the Constitution, since it gives citizens a direct path to enforce every other Fundamental Right.

Part B — Fundamental Duties (Part IVA, Article 51A)

Added by the **42nd Constitutional Amendment (1976)** and expanded by the **86th Amendment (2002)**, Article 51A lists **11 Fundamental Duties**, including:

- Abiding by the Constitution and respecting its ideals and institutions
- Cherishing the noble ideals of the freedom struggle
- Upholding the sovereignty, unity, and integrity of India
- Defending the country and rendering national service when called upon
- Promoting harmony and the spirit of common brotherhood among all citizens
- Preserving India's composite culture
- Protecting the natural environment, forests, and wildlife
- Developing scientific temper and the spirit of inquiry
- Safeguarding public property and abjuring violence
- Striving toward excellence in all spheres of individual and collective activity
- **(Added in 2002)** Providing opportunities for education to one's child or ward between the ages of 6 and 14

Part C — Directive Principles of State Policy (Part IV, Articles 36–51)

The Directive Principles guide the State toward building a just society — covering areas like equal pay for equal work, a living wage, free legal aid, village panchayats, and international peace. While not enforceable in court, courts frequently use Directive Principles to interpret and give meaning to Fundamental Rights and legislation.

Part D — Right to Information (RTI)

Definition: The RTI Act, 2005, gives every citizen the legal right to request information from any public authority, which must generally respond within **30 days**.

How it works: Submit an application (online via rtionline.gov.in for central government bodies, or offline to the relevant Public Information Officer) with a nominal fee; if unsatisfied, you can file a First Appeal, and subsequently a Second Appeal to the Information Commission.

Indian context: Over 2.5 crore RTI applications have been filed since the Act came into force on 13 October 2005, making it one of the most widely used transparency tools by ordinary citizens anywhere in the world.

Part E — Consumer Rights

Definition: The Consumer Protection Act, 2019 (effective 20 July 2020) guarantees six consumer rights: **safety, information, choice, being heard, redressal, and consumer education**.

How it works: File complaints through the **e-Jagriti portal** (launched 1 January 2025, unifying earlier systems like e-Daakhil) or call the **National Consumer Helpline**; the Central Consumer Protection Authority (CCPA) can act against unfair trade practices, misleading ads, and — more recently — "dark patterns" used by e-commerce platforms to manipulate users.

Indian context: The National Consumer Helpline's average monthly complaint volume rose from 37,062 in 2017 to over 1,47,000 in 2025, and e-Jagriti recorded 1,62,474 cases filed in 2025 alone.

Part F — Human Rights Basics

Definition: Human rights are the basic rights and freedoms inherent to all people, protected in India by the **Protection of Human Rights Act, 1993**, which established the **National Human Rights Commission (NHRC)** and State Human Rights Commissions.

How it works: Citizens can file human rights violation complaints directly with the NHRC, which can investigate, recommend compensation, and refer matters for prosecution, though it primarily has recommendatory rather than direct enforcement powers.

Part G — Women & Child Rights

Key protections include:

- **Protection of Women from Domestic Violence Act, 2005** — provides civil remedies against domestic violence
- **Protection of Children from Sexual Offences (POCSO) Act, 2012** — special protection for children against sexual abuse and exploitation
- **National Commission for Women (NCW)**, established 1992, and the **National Commission for Protection of Child Rights (NCPCR)**, established 2007 — statutory bodies safeguarding women's and children's rights respectively

Part H — Senior Citizen Rights

Definition: The **Maintenance and Welfare of Parents and Senior Citizens Act, 2007** legally obligates children/relatives to provide maintenance for parents and senior citizens (defined as those aged 60 and above), and requires the State to support old-age homes and medical care.

How it works: A senior citizen can apply to a State-constituted **Maintenance Tribunal**; the original Act capped monthly maintenance at ₹10,000, though later amendments have sought to remove this cap based on the senior citizen's actual standard of living and the children's earnings.

Part I — Citizen Responsibilities

Citizen responsibilities flow naturally from the Fundamental Duties: obeying laws, paying taxes honestly, respecting public property, voting responsibly, protecting the environment, and fostering communal harmony. Rights and responsibilities are two sides of the same democratic relationship — one rarely functions well without the other.

Important Terminologies

Term	Simple Meaning
Fundamental Rights	Enforceable constitutional guarantees protecting individual freedoms
Fundamental Duties	Civic obligations expected of every citizen (Article 51A)
Directive Principles	Non-enforceable constitutional guidelines directing government policy
RTI	Right to Information — the right to request information from public authorities
CCPA	Central Consumer Protection Authority
NHRC	National Human Rights Commission
NCW	National Commission for Women
NCPCR	National Commission for Protection of Child Rights
Maintenance Tribunal	A body deciding maintenance claims by senior citizens against children/relatives

---

Step-by-Step Understanding

How to File an RTI Application

1. Identify the public authority that holds the information you need
2. Visit rtionline.gov.in (for central bodies) or the relevant state RTI portal
3. Draft a clear, specific request for information
4. Pay the nominal application fee (fee exemptions apply for below-poverty-line applicants)
5. Submit and track your application; expect a response within 30 days
6. File a First Appeal, then a Second Appeal to the Information Commission, if unsatisfied

How to File a Consumer Complaint

1. Attempt to resolve the issue directly with the seller/service provider first
2. If unresolved, register your grievance on the National Consumer Helpline or e-Jagriti portal
3. Provide transaction details, evidence, and a clear description of the deficiency
4. Track your complaint status online
5. Escalate to the relevant District/State/National Consumer Commission if unresolved through initial channels

---

Real-Life Indian Examples

(Widely reported public patterns, described for educational awareness.)

- **RTI Revealing Public Information:** RTI applications have been widely used by citizens and journalists to obtain information on public spending, government schemes, and administrative decisions, reinforcing transparency in governance.
- **e-Jagriti and Faster Consumer Redressal:** Several states, including Rajasthan, Tamil Nadu, and Uttarakhand, achieved consumer complaint disposal rates above 100% after the e-Jagriti portal's 2025 launch, resolving even more complaints than were newly filed in the same period.
- **Maintenance Tribunal Orders:** Courts interpreting the Senior Citizens Act have upheld orders allowing tribunals to direct eviction of children from a senior citizen's property when the senior citizen's welfare was not being honoured under a conditional property transfer.

Practical Scenarios

Scenario 1: You want to know why a road repair project in your area has been delayed for months.
File an RTI application with the relevant municipal or public works department, requesting project status and timeline documents.

Scenario 2: You purchased a defective appliance and the shop refuses a refund or replacement.
Register a complaint through the National Consumer Helpline or e-Jagriti portal, referencing your purchase receipt and correspondence.

Scenario 3: An elderly parent is not receiving adequate financial support from their children despite having transferred property to them.

They can approach the State's Maintenance Tribunal under the Senior Citizens Act, 2007, for a maintenance order.

Scenario 4: You witness or become aware of a human rights violation by a public official.

You may file a complaint directly with the National Human Rights Commission (NHRC) or the relevant State Human Rights Commission.

Government Rules / Guidelines

- **Central Information Commission (CIC) / State Information Commissions:** Adjudicate RTI appeals and complaints.
- **Central Consumer Protection Authority (CCPA):** Enforces consumer protection law, including against misleading advertisements and dark patterns.
- **National Human Rights Commission (NHRC):** Investigates and addresses human rights violations.
- **National Commission for Women (NCW) & National Commission for Protection of Child Rights (NCPCR):** Statutory bodies safeguarding women's and children's rights.

Laws & Policies

Law / Provision	What It Covers
Constitution of India, Part III (Articles 12–35)	Fundamental Rights
Constitution of India, Part IV (Articles 36–51)	Directive Principles of State Policy
Constitution of India, Part IVA (Article 51A)	11 Fundamental Duties
Right to Information Act, 2005	Citizens' right to request information from public authorities
Consumer Protection Act, 2019	Six consumer rights and modern redressal mechanisms (CCPA, e-Jagriti)
Protection of Human Rights Act, 1993	Establishes the NHRC and State Human Rights Commissions
Protection of Women from Domestic Violence Act, 2005	Civil remedies against domestic violence
POCSO Act, 2012	Special protection for children against sexual offences
Maintenance and Welfare of Parents and Senior Citizens Act, 2007	Legal obligation on children/relatives to maintain senior citizens

Important Statistics

Metric	Figure
RTI applications filed since 2005	Over 2.5 crore
RTI response timeline	30 days
Fundamental Duties (Article 51A)	11
National Consumer Helpline average monthly complaints (2017 → 2025)	37,062 → over 1,47,000
e-Jagriti cases filed (2025)	1,62,474
e-Jagriti cases disposed (2025)	1,50,197
Original senior citizen maintenance cap	₹10,000/month
Senior citizens (60+) share of population (2011 Census)	8.6%, projected to reach 21% by 2050

(Figures are approximate, drawn from RTI, Ministry of Consumer Affairs, and PRS Legislative Research publications through 2025–2026.)

Best Practices

- Use RTI for specific, well-defined information requests rather than broad or vague ones
- Attempt direct resolution with a seller before escalating a consumer complaint
- Keep receipts, contracts, and correspondence as evidence for any rights-based claim
- Know which commission or authority handles your specific type of grievance
- Balance awareness of your rights with an understanding of your civic duties

Common Mistakes

- Assuming RTI can be used to demand opinions or explanations rather than factual information/records
- Not keeping proof of purchase, making consumer complaints harder to substantiate
- Not knowing the difference between Fundamental Rights (enforceable) and Directive Principles (guidance only)
- Ignoring the 30-day response window and not filing a timely appeal when needed
- Overlooking help available through NCW, NCPCR, or NHRC when facing relevant violations

Myths vs Facts

Myth	Fact
"RTI can be used to ask the government to explain its opinions or reasoning"	RTI applies to information already held in records, not to demand explanations or opinions
"Directive Principles can be enforced in court just like Fundamental Rights"	Directive Principles are not directly enforceable, though courts use them to interpret law
"Consumer complaints require a lawyer"	Most consumer complaints can be filed directly by individuals via the National Consumer Helpline or e-Jagriti, without a lawyer
"Senior citizens have no legal recourse if children neglect them"	The Senior Citizens Act, 2007, allows them to seek maintenance orders through a Tribunal
"Fundamental Duties are just symbolic, with no real relevance"	Though not directly enforceable, courts have referenced Fundamental Duties in shaping judgments on environmental and public interest matters

Do's and Don'ts

Do	Don't
File clear, specific RTI requests	Don't use RTI to ask for opinions or justifications
Keep proof of purchase for consumer issues	Don't discard receipts or transaction records
Approach the correct commission for your issue (NHRC/NCW/NCPCR)	Don't assume every grievance belongs to the same authority
Know your Fundamental Duties alongside your rights	Don't treat rights and responsibilities as unconnected
Escalate through appeals when a first response is inadequate	Don't give up after just one unanswered request

Safety Tips

For Exercising RTI

- Draft specific, factual requests rather than broad or opinion-seeking ones
- Keep your application acknowledgment number for tracking and appeals

For Consumer Protection

- Always retain bills, warranty cards, and written communication with sellers
- Use official channels (National Consumer Helpline, e-Jagriti) rather than informal disputes alone

For Vulnerable Family Members

- Help senior citizens understand their right to seek maintenance through a Tribunal if needed
- Ensure children and women in your family know how to reach NCPCR/NCW or local support services if needed

For Everyday Civic Life

- Balance awareness of your rights with mindful practice of your Fundamental Duties
- Encourage informed, respectful civic participation within your community

Practical Checklist

- ☐ Know the six categories of Fundamental Rights
- ☐ Know the 11 Fundamental Duties under Article 51A
- ☐ Understand the difference between Rights, Duties, and Directive Principles
- ☐ Know how to file an RTI application if needed
- ☐ Know how to file a consumer complaint via e-Jagriti or the National Consumer Helpline
- ☐ Know which authority to approach for human rights, women's, or children's rights concerns
- ☐ Aware of the Senior Citizens Act's maintenance provisions

Quick Revision Notes

- Fundamental Rights (Part III) are enforceable in court; Directive Principles (Part IV) are not
- 11 Fundamental Duties exist under Article 51A, added in 1976 and expanded in 2002
- RTI Act, 2005, guarantees a response within 30 days from public authorities
- Consumer Protection Act, 2019, guarantees six rights, enforced via CCPA and e-Jagriti
- NHRC, NCW, and NCPCR are the key bodies protecting human, women's, and children's rights respectively
- The Senior Citizens Act, 2007, lets parents/seniors claim maintenance through a Tribunal

Key Takeaways

1. Rights and duties are two halves of the same constitutional relationship
2. RTI and consumer redressal are practical, accessible tools most citizens underuse
3. Different vulnerable groups (women, children, seniors) have dedicated legal protections and bodies
4. Knowing which authority handles which issue saves significant time when seeking help
5. An informed citizen who knows their rights AND duties strengthens democracy itself

Glossary

- **CCPA** — Central Consumer Protection Authority
- **Directive Principles** — Non-enforceable constitutional guidelines for government policy
- **Fundamental Duties** — Civic obligations under Article 51A
- **Fundamental Rights** — Enforceable constitutional guarantees under Part III
- **NCPCR** — National Commission for Protection of Child Rights
- **NCW** — National Commission for Women
- **NHRC** — National Human Rights Commission
- **RTI** — Right to Information

Frequently Asked Questions

1. What are Fundamental Rights?
Enforceable constitutional guarantees under Part III protecting individual freedom and dignity.

2. How many Fundamental Duties are there?
11, listed under Article 51A of the Constitution.

3. Are Directive Principles enforceable in court?
No, but courts often use them to interpret and give meaning to other laws and rights.

4. What is the RTI Act?
A 2005 law giving citizens the right to request information from public authorities, who must generally respond within 30 days.

5. Can RTI be used to ask why a decision was made?
No — RTI applies to factual records/information, not opinions or explanations.

6. What are the six consumer rights under the Consumer Protection Act, 2019?
Safety, information, choice, being heard, redressal, and consumer education.

7. What is e-Jagriti?
India's unified online consumer grievance redressal portal, launched 1 January 2025.

8. What is the National Human Rights Commission (NHRC)?
A statutory body established under the Protection of Human Rights Act, 1993, to investigate human rights violations.

9. What protects women from domestic violence in India?
The Protection of Women from Domestic Violence Act, 2005.

10. What is POCSO?
The Protection of Children from Sexual Offences Act, 2012, providing special legal protection for children.

11. What is the NCW?
The National Commission for Women, a statutory body safeguarding women's rights.

12. What is the NCPCR?
The National Commission for Protection of Child Rights, safeguarding children's rights.

13. What rights do senior citizens have regarding maintenance?
Under the Senior Citizens Act, 2007, they can claim maintenance from children/relatives through a State Maintenance Tribunal.

14. What was the original cap on senior citizen maintenance?
₹10,000 per month, though later amendments have sought to remove this fixed cap.

15. Who added the Fundamental Duties to the Constitution?
The 42nd Constitutional Amendment, 1976, with an 11th duty added by the 86th Amendment, 2002.

16. What is considered the "heart and soul" of the Constitution?
The Right to Constitutional Remedies (Article 32), per Dr. B.R. Ambedkar.

17. How do I file an RTI application online?
Through rtionline.gov.in for central government bodies, or the relevant state RTI portal.

18. What should I do if my RTI request isn't answered in 30 days?
File a First Appeal, and if still unresolved, a Second Appeal to the Information Commission.

19. Do I need a lawyer to file a consumer complaint?
No — most complaints can be filed directly via the National Consumer Helpline or e-Jagriti.

20. What does the Consumer Protection Act say about misleading advertisements?
The CCPA can act against misleading ads and unfair trade practices, including newer "dark pattern" tactics.

21. Can senior citizens get property transfers reversed if not cared for?
Yes — courts have upheld that conditional property transfers can be voided if the senior citizen's welfare isn't honoured.

22. Where can I report a human rights violation in India?
Directly to the National Human Rights Commission (NHRC) or the relevant State Human Rights Commission.

Suggested Infographics, Flowcharts & Illustrations

(For JanGyan design team — placement suggestions only; no images generated here)

- **Rights vs Duties vs Directive Principles comparison chart** → within "Fundamental Concepts"
- **Six Fundamental Rights icon wheel** → within "Complete Detailed Explanation, Part A"
- **11 Fundamental Duties checklist card** → within "Complete Detailed Explanation, Part B"
- **RTI application flowchart (Application → 30 days → First Appeal → Second Appeal)** → within "Step-by-Step Understanding"
- **Consumer complaint journey (Seller → NCH/e-Jagriti → Commission)** → within "Step-by-Step Understanding"

Official References

- Constitution of India — Parts III, IV, and IVA
- Right to Information Act, 2005 — Department of Personnel and Training
- Consumer Protection Act, 2019 — Ministry of Consumer Affairs, Food and Public Distribution
- Protection of Human Rights Act, 1993 — National Human Rights Commission

- Protection of Women from Domestic Violence Act, 2005
- Protection of Children from Sexual Offences (POCSO) Act, 2012
- Maintenance and Welfare of Parents and Senior Citizens Act, 2007

Official Government Website Links

- RTI Online: **https://rtionline.gov.in**
- National Consumer Helpline / e-Jagriti: **https://consumerhelpline.gov.in**
- National Human Rights Commission: **https://nhrc.nic.in**
- National Commission for Women: **https://ncw.nic.in**
- National Commission for Protection of Child Rights: **https://ncpcr.gov.in**
- India.gov.in (National Portal): **https://www.india.gov.in**

Conclusion

Fundamental Rights protect your freedom. Fundamental Duties bind you to your fellow citizens. Directive Principles guide the State toward justice. And laws like the RTI Act, the Consumer Protection Act, and protections for women, children, and senior citizens turn these constitutional ideas into everyday tools you can actually use. Knowing them transforms you from a passive citizen into an informed, empowered one.

This is the next step in your Government Services & Citizen Rights journey with JanGyan. Stay informed, stay engaged, and remember: **rights exercised responsibly, alongside duties fulfilled faithfully, are what make a democracy work.**

JanGyan — Learn Without Limits
Module 4 of the Government Services & Citizen Rights Category